

**7. 9:00 AM CASE NUMBER: C26-00107**  
**CASE NAME: JANICE BUCHANAN VS. ULTRA406 ENTERPRISES, INC.**  
**STRIKE DEFENDANT ULTRA406 ENTERPRISES, INC.'S OPPOSITION TO COMPLAINT**  
**FILED BY: BUCHANAN, JANICE**  
**\*TENTATIVE RULING:\***

Plaintiff Janice Buchanan ("Plaintiff") filed a Motion to Strike on April 10, 2026 (the "Motion to Strike"). The motion seeks to strike the pleading entitled "Defendants' Opposition to Complaint for Damages and Injunctive Relief" (the "Responsive Pleading") filed January 28, 2026 by Justin Steffes on behalf of the named corporate entity defendant Ultra406 Enterprises, Inc. ("Ultra406"). The Motion to Strike was set for hearing on August 31, 2026. No opposition has been filed to the Demurrer or Motion to Strike.

Background

Plaintiff initiated this action by the Complaint for Damages and Injunctive Relief filed January 12, 2026. There are two named defendants—Justin Steffes, individually, and Ultra406.

The Court, in connection with prior case management proceedings, issued an OSC for defendants to show cause, if any they had, why the corporate defendant Ultra406's purported Responsive Pleading should not be stricken as to Ultra406 for failure to appear through and be represented by an attorney. See Order entered June 2, 2026.

The Court ultimately struck the Responsive Pleading as to Ultra406. See Order entered July 22, 2026. As part of that order, this motion was withdrawn and the hearing vacated.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike has been **WITHDRAWN** and the hearing is **VACATED**.

**8. 9:00 AM CASE NUMBER: C26-00157**  
**CASE NAME: RONDA FRANK VS. THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES**  
**TO TRANSFER VENUE**  
**FILED BY: THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES**  
**\*TENTATIVE RULING:\***

The unopposed Motion to Transfer Venue is **GRANTED**. The request for sanctions is **DENIED**. Moving party to prepare and submit a proposed order after hearing.

**9. 9:00 AM CASE NUMBER: C26-00599**  
**CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON**  
**DISQUALIFY OPPOSING COUNSEL (MICHELLE WOODRUFF)**  
**FILED BY: ROBERSON, DANIEL JACOB**  
**\*TENTATIVE RULING:\***

Before the Court is Plaintiff Daniel Roberson's Motion to Disqualify Attorney Michelle Woodruff ("Motion").

Plaintiff's Motion is **DENIED** as explained below.

### **Factual and Procedural Background**

Plaintiff filed the Complaint on February 19, 2026, asserting three causes of action against Defendant Merissa Benton: (1) defamation; (2) malicious prosecution – common law; and (3) intentional infliction of emotional distress. The claims are based on statements made by Defendant in a request for a Domestic Violence Restraining Order filed in Solano County Superior Court – Case No. FL24-00965 which was filed on April 26, 2024. Plaintiff and Defendant were previously in a romantic personal relationship which ended in 2013. They are the parents of a minor child.

On April 8, 2026, before Defendant appeared in the action, Plaintiff filed the instant motion. On April 10, Plaintiff filed a "Judicial Notice Packet" which indicated it contained four exhibits. No exhibits, however, were attached to the Packet. On June 29, Plaintiff filed a "Request for Judicial Notice." There is no indication what this Request is in support of. It again indicates that four documents were attached without actually attaching any exhibits.

On July 15, 2026, Defendant filed her "Fourth" and "Fifth" "Request for Judicial Notice" in support of her Opposition to the motion to disqualify. Five days later, on July 20, Defendant filed her Opposition memorandum and declarations in support thereof. The Court notes that on April 14, 2025, Defendant filed three separate RJNs (the "First," "Second," and "Third") in support of her demurrer and motion to strike. These were **not** filed in support of her opposition to this motion.

### **Initial Consideration**

"All supporting affidavits, declarations, memoranda of points and authorities, and similar documents shall be attached to the notice of motion ... or other moving papers, when filed." (Local Rule 3.51(d).) "Failure to comply with this requirement shall be deemed cause for taking the matter off calendar." (*Ibid.*) "The original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and points and authorities." (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) ¶ 9:44, citing with approval in *David S. Karton, a Law Corp. v. Musick, Peeler & Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048; See also Code Civ. Proc. § 1005(b).)

Both parties' procedure of filing papers over multiple days is inappropriate and confusing. Especially, when the document's title does not indicate what motion it is in support of. Going forward, all papers in support of a motion, opposition, or reply should be filed concurrently. Absent a showing of good cause, the Court will generally not entertain documents filed on separate days in a serial fashion. Plaintiff should also make sure that he is attaching all relevant documents to his filings.

There is also no need to file serial 'requests for judicial notice,' i.e. a 'fourth' and 'fifth' RJN. The party can file a single Request for Judicial Notice in support of their motion/opposition/reply and list each of the different documents they are seeking notice of. Labeling a RJN the 'fourth in support of defendant's opposition' just adds to the confusion when there is no first, second, or third RJN in support of that opposition.

While noting the above, the Court **GRANTS** Defendant's "Fourth" and "Fifth" RJNs. Plaintiff's RJNs are **DENIED**.

## Standard

“A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice.” (*City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” (*Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.)

“Ultimately, disqualification motions involve a conflict between the clients’ right to their choice and the need to maintain ethical standards of professional responsibility.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 (“*Speedee*”).) “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*Ibid.*)

Plaintiff argues that attorney Michelle Woodruff should be disqualified completely from representing Plaintiff in this matter based on California Rules of Professional Conduct, Rule 3.7, the so-called ‘advocate-witness rule’. Rule 3.7 states, in pertinent part:

(a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless:

...

(3) the lawyer has obtained informed written consent from the client. ...”

## Analysis

### **Timeliness of Motion**

Defendant first argues that the motion to disqualify is premature as there is no trial pending and Rule 3.7 only pertains to an attorney advocating “in a trial.”

Rule 3.7 (a) states that a “lawyer shall not act as an advocate *in a trial* in which the lawyer is likely to be a witness...” (emphasis added.) “Trial” is not limited to representation only at the trial itself. Instead, “to effectuate the rule’s purpose of avoiding fact finder confusion, [courts] interpret the rule’s use of the term ‘trial’ to encompass a pretrial evidentiary hearing at which counsel is likely to testify.” (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 583.) Further, courts “recognize that an attorney who ‘intends to testify at trial may not participate in any ‘pretrial activities which carry the risk of revealing the attorney’s dual role to the jury.’” (*Ibid.* citation omitted.) “In particular, a testifying attorney should not take or defend depositions.” (*Ibid.*)

As discovery is open and proceedings could very well be initiated that implicate these ethical rules, Plaintiff can seek disqualification of Ms. Woodruff at this time to ensure she does not participate in any depositions or testify at any pretrial evidentiary hearings.

### **Substantive Arguments**

While Defendant does not show that she has provided informed **written** consent to her attorney, she does include the following statement in her declaration: “If there is a hint of a potential conflict or prejudice to me, I waive such conflict and ask that the Court deny Plaintiff’s motion.” (Opp. at 3:6-8,

[Benton Decl.], emphasis in original.) This statement is enough to show that Defendant will indeed provide the proper written consent if required. As such, the Court will presume written consent has been or could readily be obtained.

“[T]he general rule is that an attorney may serve as both advocate and witness ... if the client has provided its informed written consent.” (*Gerringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822.) This exception is not absolute, and a court can still limit an attorney’s role “to protect the trier of fact from being misled or the opposing party from being prejudiced.” (*Id.* at 821-22.) “The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon ‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’” (*Id.* at 822, citation omitted.)

“In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) ‘whether counsel’s testimony is, in fact, genuinely needed’; (2) ‘the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons’; (3) ‘the combined effects of the strong interests parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.’” (*Doe*, supra, 55 Cal.App.5th at 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81.) “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions.” (*Id.* at 584.)

#### **Whether Defense Counsel’s testimony is genuinely needed**

Plaintiff contends that litigating his case will involve reviewing documents from a 2015 family law case involving Plaintiff and Defendant related to custody of their daughter. He argues that the documents from that matter contain handwritten alterations, that he contends were “not initialed by the judge, were not part of the typed recommendations, and were not disclosed to Plaintiff at the time.” (Motion at ¶ 8.) Notably, Plaintiff does not specify what document(s) from the family law case are at issue, nor does he attach any such documents. The document at issue appears to be a “Findings and Order After Hearing” issued on November 13, 2015, in Contra Costa Superior Court case no. D12-01051, which was provided by Defendant. (Defendant’s Fourth RJN, Ex. A, “2015 Order.”)

Plaintiff declares that he “did not receive the order at the hearing and received a copy only days later,” and was “never informed of the handwritten instructions.” He contends that attorney “Woodruff is the **only person** who can testify regarding when and how the handwritten wording was added, and whether the Court approved it.” (Motion at ¶ 11 bold in original.) He does not explain why this is the case.

Defendant provides context for what led to the 2015 Order in her declaration. Plaintiff and Defendant litigated custody of their daughter in the underlying family law matter. The last order in the case was the 2015 Order. Plaintiff did not attend the hearing which resulted in the 2015 Order. Defendant and attorney Woodruff were at the hearing. Defendant indicates that when the case was called “Judge Anita Santos reviewed the ‘Recommendations for Future Procedures’” ... and “made amendments to the recommendations.” “At every point where Judge Santos’ orders deviated from [the] recommendations, her initials appear in the margins, circled....” She makes clear that at “no point in

time did my attorney [Ms. Woodruff] alter, change, or otherwise modify any term of the order.”

Ms. Woodruff also provides a declaration that reflects the same series of events. She also makes clear that she did not make any alterations to the 2015 Order.

At this stage of the litigation, it does not appear that Ms. Woodruff’s testimony “is genuinely needed.” First, the Court notes that Plaintiff’s description that the handwritten changes in the 2015 Order “were not initialed by the judge” is incorrect. The 2015 Order clearly shows that each of the changes is initialed. It is also worth noting that Plaintiff contradicts his claim that the changes to the 2015 were not initialed when he states: “Although the Court initialed the numbered recommendation, those initials apply **only to the typed recommendation itself** and **not** to the handwritten wording beneath it.” (Motion at 4:8-10, *bolding in original*.) Plaintiff presents no evidence to support his supposition as to what the initials apply to. Nor does his contention make any logical sense given that the initials are only next to the handwritten changes in the 2015 Order.

Second, the Court can take judicial notice of the records of “any court of this state.” (Evid. Code § 452(d).) As such, there is no need for testimony regarding the 2015 Order.

Finally, even if for some reason testimony was required regarding how that 2015 Order was prepared, Ms. Woodruff is not the only person that can provide testimony regarding those circumstances. Defendant herself acknowledges she was at the hearing and provides a detailed explanation of what occurred. There is no reason to have Ms. Woodruff testify.

Plaintiff has failed to show that Ms. Woodruff’s testimony is genuinely needed.

#### **Tactical reasons for motion to disqualify**

Defendant indicates that Ms. Woodruff has represented her for over 15 years. Having represented Ms. Woodruff during the custody case and beyond, she is intimately familiar with the issues related to the parties’ relationship and the custody of their daughter.

This long-standing relationship appears to be the real reason for Plaintiff’s motion. There is no indication that Ms. Woodruff is going to need to be personally involved in this matter as a witness. As such, the only reason to try to have her disqualified would be to deprive Defendant of a trusted legal advisor that she has built a relationship with over many years. In other words, this motion appears to have been brought “purely for tactical reasons.” (*Doe*, *supra*, 55 Cal.App.5th at 583.)

#### **Choice of representation versus expense and prejudice in finding replacement counsel**

The California Supreme Court has acknowledged that “important right to counsel of one’s choice....” (*SpeedDee*, *supra*, 20 Cal.4th at 1145.) A motion to disqualify weights this right with “the need to maintain ethical standards of professional responsibility.” (*Ibid*.)

“The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon ‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’” (*Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822.)

Plaintiff makes no such showing. As noted above, there does not appear be any need for the testimony of attorney Woodruff. Even if it were necessary, Plaintiff makes no showing to explain how

this would prejudice him. The Court also notes that Plaintiff did not file a Reply to address any of Defendant's points.

Given the above, the Court finds that this factor weighs in favor of Defendant.

### **Summary and Conclusion**

Weighing the *Doe* factors outlined above, the Court finds there is no basis to disqualify Ms. Woodruff as counsel for Defendant.

Plaintiff's Motion is **DENIED**.

**10. 9:00 AM CASE NUMBER: MSC20-00271**

**CASE NAME: MENASCO VS KILARR**

**ATTORNEYS FEES MOTION FILED**

**FILED BY:**

**\*TENTATIVE RULING:\***

**Parties to Appear.**

**11. 9:00 AM CASE NUMBER: MSN20-1173**

**CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER**

**AWARD OF REASONABLE ATTORNEY FEES AND COSTS**

**FILED BY:**

**\*TENTATIVE RULING:\***

Petitioner Tobias Lester ("Petitioner") filed a Motion for Award of Reasonable Attorneys' Fees and Costs on January 23, 2026 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$75,385.00 in attorneys' fees, with a 2.00 multiplier, for a total of \$145,520.00, plus \$2,535.93 in costs. The Motion for Fees and Costs was set for hearing on June 8, 2026. The Court *sua sponte* continued the matter from June 8, 2026 to August 31, 2026. The motion is opposed.

### **Background**

This matter arises from a Petition for Writ of Mandate filed nearly six years ago in connection with a Petitioner's challenge to a proposed local ballot measure in Contra Costa County, Measure X, relating to a sale tax increase (the "Proposed Sales Tax Measure").

The petition was largely resolved at the time by a pair of Orders entered by the Court in August 2020. See Orders entered August 27, 2020. Those orders essentially granted relief on two matters: (1) that the proposed ballot measure question language "be amended by removing the phrase 'requiring fiscal accountability';" and (2) that the proposed impartial analysis language be amended by deleting a sentence ("State law authorizes Contra Costa County to adopt an ordinance proposing a one-half 20 of one percent (0.5%) sales tax."). As later stipulated, the latter assertion was a misstatement of the then existing law.

The Court notes that year ago, the Court rejected a proposed form of judgment, arguably having considered its two August 2020 orders constituting the judgment in the writ proceeding. See County of Contra Costa's Objection to Petitioner's Proposed Judgment filed June 29, 2021 and Clerk's